

STATE OF NEW YORK

10119--A

IN ASSEMBLY

February 2, 2026

Introduced by M. of A. CLARK -- read once and referred to the Committee on Agriculture -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the agriculture and markets law, in relation to establishing an animal abuser registry

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 403 of the agriculture and markets law is amended
2 by adding a new subdivision 12 to read as follows:

3 12. The applicable license issuer pursuant to the provisions of this
4 section shall run a background check as part of every application and
5 renewal against the animal abuser registry established pursuant to
6 section three hundred fifty-three-g of this chapter and shall not issue
7 or renew a license to an applicant or licensee who is on such registry.

8 § 2. Subdivision 3 of section 403 of the agriculture and markets law,
9 as amended by chapter 683 of the laws of 2022, is amended to read as
10 follows:

11 3. Each application for a license shall be accompanied by a nonrefund-
12 able fee of one hundred fifty dollars, except that those pet dealers who
13 engage in the sale of less than twenty-five animals in a year.

14 § 3. Subdivision 5 of section 421 of the agriculture and markets law,
15 as added by chapter 683 of the laws of 2022, is amended and a new subdi-
16 vision 8 is added to read as follows:

17 5. Such license shall be renewable annually, upon the payment of a
18 nonrefundable fee of one hundred fifty dollars, except that those animal
19 shelters who adopt out less than twenty-five animals in a year.

20 8. The commissioner shall run a background check as part of every
21 application and renewal against the animal abuser registry established
22 pursuant to section three hundred fifty-three-g of this chapter and
23 shall not issue or renew a license to an applicant or licensee who is on
24 such registry.

25 § 4. The agriculture and markets law is amended by adding a new
26 section 353-g to read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11622-03-6

1 § 353-g. Animal abuser registry. 1. For purposes of this section, the
2 term "animal abuser" means a person sixteen years of age or older who
3 has been convicted of a felony or misdemeanor violation of any provision
4 of this article or of the comparable statutes of another state.

5 2. The New York state division of criminal justice services shall
6 maintain a registry of animal abusers required to register pursuant to
7 the provisions of this section. The central registry of animal abusers
8 shall be made available to the public through internet access, telephone
9 access, written access and in-person access. All of the information
10 contained in an animal abuser's registration shall be made available.
11 Records of each animal abuser's registration shall be maintained for the
12 duration of the period in which the animal abuser is required to be
13 registered.

14 3. (a) A person convicted of a felony or misdemeanor violation of any
15 provision of this article shall register with the department of criminal
16 justice services within ten days of their release from incarceration or
17 on the date of conviction, whichever is later.

18 (b) Any animal abuser who enters the state and physically remains
19 within the boundaries of this state for more than ten consecutive days
20 shall register with the department of criminal justice services before
21 the end of the eleventh day in the state.

22 4. Any previously registered animal abuser shall reregister no later
23 than ten days after moving to a new location within the state.

24 5. When an animal abuser registers, the animal abuser shall provide
25 the following registration information:

26 (a) the legal name and any other names or aliases that the animal
27 abuser is using or has used;

28 (b) the date of birth of the animal abuser;

29 (c) the current address or location of the animal abuser;

30 (d) the animal protection offense for which the animal abuser was
31 convicted, including the date and place of such conviction; and

32 (e) a current photograph of the animal abuser.

33 6. Following an animal abuser's initial registration pursuant to the
34 provisions of this section, an animal abuser shall annually renew the
35 animal abuser's registration with the department of criminal justice
36 services prior to December thirty-first of each subsequent calendar year
37 for a period of seven years from the animal abuser's date of conviction
38 or release from incarceration for the underlying violation of this arti-
39 cle, whichever is later. An animal abuser who is convicted of a subse-
40 quent felony or misdemeanor violation of any provision of this article
41 or of the comparable statutes of another state shall be required to
42 annually renew such animal abuser's registration with the department of
43 criminal justice services prior to December thirty-first of each subse-
44 quent calendar year for the rest of their life.

45 7. An animal abuser who intentionally or knowingly fails to comply
46 with the registration requirements, or provides false information when
47 complying with the registration requirements set forth in this section,
48 is guilty of a class E felony.

49 8. Each county sheriff shall provide links to register with or view
50 the department of criminal justice services' registry of animal abusers
51 on their public website.

52 9. Within ten days of receiving initial or updated registration
53 information from an animal abuser, the department of criminal justice
54 services shall forward such information to the applicable county sheriff
55 who shall contact every humane society, animal shelter, local society
56 for the prevention of cruelty to animals organization, and any other

1 business within a half mile radius of the animal abuser's residence or
2 location and provide them with the animal abuser's registration informa-
3 tion.

4 10. No person shall sell, exchange, or otherwise transfer ownership of
5 any animal to any person listed on the animal abuser registry estab-
6 lished pursuant to subdivision two of this section.

7 § 5. This act shall take effect on the one hundred eightieth day after
8 it shall have become a law. Effective immediately, the addition, amend-
9 ment and/or repeal of any rule or regulation necessary for the implemen-
10 tation of this act on its effective date are authorized to be made and
11 completed on or before such effective date.